



File No.: EXP202406228

RESOLUTION OF

PROCEDURE OF WARNING

Of the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 13, 2024. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that the respondent has a video surveillance system on their property that, according to the complainant, captures audio and video of the movements of their family to harass them, making publications about it on Instagram and Telegram. The complainant filed a report with the National Police on March 21, 2024.

The complainant provides photographs of the cameras and their orientation, a photocopy of the report to the Police, and messages via Telegram. (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On April 13, 2024, the complaint was forwarded, and a response was received on May 13, 2024, from the respondent, who provided a screenshot of what is captured by their camera, as well as photographs of the informational signs installed on the property.

FOURTH: On July 13, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On September 9, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was received by the responsible party within the availability period, being understood as as stated in the certificate in the administrative file.

SEVENTH: On September 10, 2024, a written response was received from the respondent, which, in summary, includes the following considerations:

"First of all, as this is my home, that is, a private property. That is why, although I put up signage (which I believe is not mandatory), I did not fill in the personal data and left those of the installing company.

However, I have proceeded to fill in the identifying fields of said signs and attach the relevant photographs."

Documentary evidence regarding this is attached (Annex I) Doc. 1-3.

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts to be proven in this procedure,

PROVEN FACTS

First. It is identified that B.B.B., with NIF ***NIF.1, is the main responsible party, who does not deny being responsible for the installation.

Second. The initial presence of a video surveillance system is accredited.

Third. It is accredited that the informational sign was not complete, and the respondent has proceeded

to correct it due to the initiation of this procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, by the general rules on administrative procedures."

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II

In the present case, the claim submitted to this Agency is examined, through which the "capture of images" of the claimant and family members is reported, without justified cause.

After reviewing the initial evidence provided, it is considered that there are indications to suggest that the informational sign does not comply with current legality, which leads to a presumed violation of Article 13 of the GDPR.

It is recalled that cameras cannot be used to affect the property of third parties, being limited to the permitted purpose and avoiding actions that may harm other fundamental rights, adhering strictly to private property.

Those responsible for the installation of such devices are responsible for ensuring that they comply with current legality, which includes indicating on the informational sign the identity of the data controller, a valid address for inquiries, and the means to exercise rights.

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, if any;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;

- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and its rectification or erasure, or the restriction of its processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any relevant additional information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

Article 22(4) of the LOPDGDD (LO 3/2018) states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informational device."

III

Classification and qualification of the infringement

In accordance with the evidence available in the present warning procedure, it is considered that the respondent has a video surveillance system that was not properly signposted.

The respondent, as stated in a written submission dated 10/09/24, has proceeded to "correct" this so that it is now evident in a visible area that it is a , having proceeded to inform about the data controller and the means to exercise rights in accordance with current regulations.

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The known facts constitute an infringement, attributable to the respondent, as provided in Article 13 of the GDPR, previously cited.

Article 83.5 of the GDPR states: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- b) the rights of the data subjects under Articles 12 to 22;"

For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is provided in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this Organic Law."

IV

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

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The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

V

Adoption of measures

In accordance with the above, given that the respondent has proceeded to correct the "irregularities" detected in the information notice, attaching documentary evidence in this regard, no corrective measure is warranted.

It is reminded that the cameras must be confined to the private property of the respondent, avoiding orientation towards public and/or private areas of third parties, and in the event of a new complaint, the fact that this agency has extensively informed about strict compliance with current legislation regarding the installation of the video surveillance system may be assessed.

Therefore, in accordance with the applicable legislation and having evaluated the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested

party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through

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of the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. You must also submit to the Agency the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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Director of the Spanish Agency for Data Protection

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